

Supreme Court of the State of New York
Appellate Division, First Judicial Department

Present – Hon. Tanya R. Kennedy,
Saliann Scarpulla
Martin Shulman
Bahaati E. Pitt-Burke
Shlomo S. Hagler,

Justice Presiding,

Justices.

The People of the State of New York,
Respondent,

Motion No. 2026-00238

Ind. No. 3098/15

Case No. 2017-1947

-against-

Edwin Morales,
Defendant-Appellant.

An order of this Court having been entered on February 14, 2017 (M-6480), inter alia, assigning Seymour W. James, Jr., as predecessor to Twyla Carter, Esq., The Legal Aid Society, 199 Water Street, 5th Floor, New York, New York 10038, Telephone No. 212-577-3688, as counsel to prosecute defendant's appeal from a judgment of the Supreme Court, New York County, rendered on April 6, 2016,

And counsel having moved for an order abating the appeal by reason of appellant's death, remanding the matter to the trial court to vacate the judgment of conviction, and dismissing the indictment,

Now, upon reading and filing the papers with respect to the motion, and due deliberation having been had thereon,

It is ordered that the motion is granted to the extent of dismissing the appeal due to appellant's death on April 14, 2020, and remanding the matter to the Supreme Court, New York County, for further proceedings consistent with *People v Mintz* (20 NY2d 770).

ENTERED: March 05, 2026



Susanna Molina Rojas
Clerk of the Court